

TERMS AND CONDITIONS

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PREAMBLE

These Terms and Conditions (the **Agreement**) govern the relationship between **AMBER ROCK TRADE LTD** (the **Company, we, us**) and the **Client (you)**. The Company is authorised and regulated by the Financial Services Commission of Mauritius (**FSC**) as an Investment Dealer under the applicable licence and provides services strictly within the scope of its authorisation.

These Terms & Conditions apply if you participate at TraderTok (operating by AMBER ROCK TRADE LTD) as a client and/or trader. By doing so, you agree and declare that you have read and understood these Terms & Conditions and you acknowledge that these Terms & Conditions shall apply to you. If you do not agree to any of these Terms & Conditions, you should stop using the Service immediately and send an e-mail to support@tradertok.com. We consider these Terms & Conditions to be open and fair. Should you need any explanation regarding these or any other part of our Service, please contact Customer Service. Important: Please note that while these terms and conditions may be translated and presented in other languages, which is a service offered for convenience only. Should any of the terminology or content of any translated terms and conditions contradict those of its English version, or in any way mislead, the terms outlined in the English T&C document will prevail. When and where personal information is provided by the client, it is the responsibility of the client to ensure that all such information is correct, up to date and complete. After any deposit, you should sign our declaration of deposit (hereinafter "DOD") if we will ask you to do so.

The content of these terms and conditions may be changed, modified, amended, added to or taken away from at any time by the company, without any prior notice being offered. By using the company's website or accessing any of the content the company provides, the client expressly agrees to abide by all terms and conditions as set out in the document at the time of their visit. It is therefore the responsibility of the client to frequently revisit these terms and conditions, in order to note any important changes or additions.

By accepting these Terms & Conditions you are fully aware that there is a risk of losing money when trading and/or investment and you are fully responsible for any such loss. You agree that your Participation and/or the service provide to you by the company is at your sole responsibility, discretion, and risk. In relation to your losses, you shall have no claims whatsoever against the company or any partner, or respective directors, officers, or employees. The terms and conditions as laid out in this document are valid indefinitely, although the company reserves the right to alter, amend and terminate any or all specific terms at any time. All customers must therefore regularly revisit the full disclosure of terms and conditions in order to ensure full compliance and agreement.

1. COMMUNICATION WITH US

1.1 Channels - You may communicate with us in writing (including email and platform messaging) or orally (including telephone).

1.2 Language - The language of communication and contractual documentation shall be English. Any translations are provided for convenience only and do not bind the Company.

1.3 Electronic Communications Risk - You acknowledge that electronic communications may be insecure, intercepted, delayed, altered, or lost. To the maximum extent permitted by law, we are not liable for losses arising from such risks.

1.4 Policies by Reference - This Agreement incorporates by reference policies and disclosures published or made available on our website and/or Trading Platform, including privacy, AML/CTF, risk disclosure, order execution, conflicts, and data protection. Updated policies are binding upon publication.

1.5 Monitoring and Recording - We may monitor, review, and record communications for quality, security, compliance, and dispute resolution. Recordings and logs are Company property and may be used as evidence.

2. MEMBERSHIP ELIGIBILITY

2.1 Legal Capacity - Services are available only to persons or entities with legal capacity to enter binding contracts under the laws applicable to them.

2.2 Minors - Services are not available to persons under 18 or the applicable age of majority. If we discover use by a Minor, we may restrict or close the Account and return only the original deposit to the original source, subject to compliance checks.

2.3 Geographic Restrictions - Services may be restricted or prohibited in certain jurisdictions. Access to our website does not mean our services are legal in your jurisdiction. You bear sole responsibility to ensure legality and compliance.

2.4 Right to Refuse - We may refuse, restrict, suspend, or terminate access at our sole discretion, including for legal, regulatory, risk, or operational reasons.

3. DEFINITIONS - INTERPRETATION

3.1 Key Definitions (non-exhaustive):

- **Account** - Your trading account with the Company.
- **Client Funds** - monies credited to you and held by or for the Company in connection with your Account.

- **Trading Platform(s)** - any web, mobile, desktop, API, third-party, or future systems approved by the Company for trading.
- **Order** - any request or instruction to open, modify, or close a position.
- **Transaction** - any activity in the Account including deposits, withdrawals, open and closed trades, adjustments, fees.
- **Applicable Regulations** - laws, FSC rules, AML/CTF, sanctions, tax reporting, data protection, and any other applicable requirements.
- **Force Majeure Event** - events beyond our reasonable control, including system failures, third-party outages, war, natural disasters, civil unrest, governmental actions.

3.2 Interpretation - Headings are for convenience only. Singular includes plural.

References to law include amendments and replacements.

4. PROVISION OF SERVICES

4.1 Market Maker Model

The Company acts as principal and market maker in respect of the Financial Products offered. This means that the Company may act as the counterparty to Client transactions, set bid and ask prices, and assume market risk arising from Client trading activity. The company reserves the sole right to select and manage the assets that are available to clients at any one time and may modify or change the available list of available assets without prior notice or explanation. All the company's clients accept that from the moment a transaction has been executed, it cannot and will not be cancelled or reversed. Our clients therefore understand that sufficient thought and comprehensive checks must be carried out before going ahead with any trade and/or investment.

The company is only to be bound by any information or communication exchanged between any other parties, by way of writing as stated in Customer Service and Customer Complaints/Dispute section (only by e-mail). The company is not responsible for saving any trade and/or investment history and the client should save all of the details the company giving him, written or verbal and/or all the information

that is relevant for his investment and/or trades, including prices, dates, etc. As such, our advice, communications and notices in general will only be considered valid and binding if they are presented in writing by e-mail. All clients and customers of the company accept that trading is inherently a highly speculative and potentially risky approach to investing, therefore the client accepts full responsibility for any outcomes and consequences that arise from their actions while using this website .

Clients accept that the extremely fast-paced nature of certain types of investment and/or trade makes it possible to both win or lose significant sums of money in very short periods of time. It is the responsibility of the client to seek independent advice should it be required, as a means by which to facilitate safe and responsible trading and/or investment services in the client behalf. The company liability in instances where damages incurred result in compensation payments will be strictly limited to the total amount that the client in question has deposited in their account, subject to that client proving their case. Under no circumstances will the company be held liable for additional damages such as loss of profits, regardless of the cause of the incurred loss.

Clients accept that the company will not accept any liability whatsoever for any obligational breach or default on the part of depositaries, clearing houses, exchanges, market operators, custodians, sub-custodians, banks, brokers or counterparties with whom you conduct business of any kind, as well as force majeure scenario. The company will not be held liable for losses suffered as a result of using the company website.

4.2 Execution Basis

Although the Company acts as market maker, services are provided on a non-advisory basis. The Company does not provide investment advice, portfolio management, or personalized recommendations, and does not assess suitability or appropriateness unless required by Applicable Regulations.

4.3 No Fiduciary Relationship

The Client acknowledges that the Company does not act as fiduciary, trustee, or agent for the Client. All trading decisions are made solely by the Client, who bears full responsibility for outcomes.

4.4 Conflicts of Interest

The Client acknowledges that conflicts of interest may arise as a result of the Company acting as market maker, including where the Company holds positions opposite to those of the Client. The Client expressly consents to such conflicts as inherent in the market maker model.

4.5 Pricing Discretion

The Company determines prices at which it is prepared to deal, taking into account market conditions, liquidity, risk management, and internal pricing models. Prices may differ from prices available in underlying or external markets.

4.6 Right to Refuse or Modify Services

The Company may suspend, restrict, refuse, or modify services, instruments, pricing, leverage, or margin requirements at its discretion for risk management, regulatory, liquidity, or operational reasons.

Using leverage and margin - We allow you to trade instruments using leverage. Leverage is a form of borrowing which allows you to deposit only a part of the cost of your transaction upfront. This deposit is called "margin" and is used by us as security against any potential losses you may incur. The more leverage you use, the less margin you need. Money being used as margin cannot be taken out of your account.

Different amounts of leverage apply to different underlying products. It is your responsibility to monitor the money in your account against your potential losses, the margin required, and whether your position is close to your stop level, as we will not notify you when this happens. If you do not have enough money in your account to meet the margin requirement on a certain position, you should :close your open position to stop you losing more money; partially close your positions; and/or adjust your stop levels. The ability to adjust your stop levels is subject to you having the appropriate funds in your account. Unless you carry out one or more of the above steps, your trade will be closed irrespective of the total money available in your account or the performance and balance of your other open positions. Your trade will be closed without prior notice to you and without an opportunity for you to choose the timing of liquidation. You acknowledge and accept the fact that in accordance with legal regulations and requirements, the company may freeze or restrict accounts, impose limitations on services offered, deduct tax payments of any kind and to any

extent or take whatever action may be required, should we be instructed to do so by the relevant authorities. The company also accepts no liability whatsoever for any loss, damage or detrimental consequences suffered as a result of any action taken by the company, in accordance with the express instructions of legal authorities, regulators or financial institutions.

5. ACCOUNT OPENING INFORMATION AND REQUIREMENTS

5.1 Information Accuracy - You must provide accurate, complete, and up-to-date information. You must promptly update changes.

5.2 KYC and Verification - Account opening and continued use are subject to identity verification and ongoing due diligence. We may request additional documents at any time and may suspend, restrict, or terminate Accounts pending verification.

5.3 Data Processing - You consent to collection, processing, storage, and sharing of personal data with regulators, auditors, banks, payment providers, and advisors, including cross-border processing where lawful.

5.4 Electronic Evidence - Platform logs, recordings, and system data constitute conclusive evidence of your activity absent manifest error.

6. CLIENT REPRESENTATIONS, WARRANTIES, AND GUARANTEES

6.1 Source of Funds - All funds are yours, free of liens and third-party claims, and not proceeds of illegal activity.

6.2 Authority - You have full authority and capacity to enter this Agreement. If an entity, you are duly authorised and validly existing.

6.3 No Third-Party Use - You act for yourself and not as agent or trustee for third parties, unless expressly approved in writing.

6.4 Regulatory Compliance - You will comply with Applicable Regulations, sanctions regimes, tax reporting obligations, and platform rules.

6.5 Reporting and Freezing - We may report suspicious activity and freeze, withhold, reverse, or return funds without notice where required or where we reasonably suspect non-compliance.

6.6 Indemnity - You indemnify us for losses, fines, penalties, costs (including legal fees) arising from breach of these warranties.

7. ELECTRONIC TRADING - ACCESS CODES

7.1 Credentials - Access codes are personal and non-transferable. You are responsible for all actions using your credentials.

7.2 Security - You must keep credentials confidential. If compromised, notify us immediately. Delay increases your liability.

7.3 Platform Integrity - You must not misuse the platform, including latency exploitation, manipulation, abusive strategies, or interference.

7.4 Suspension - We may suspend or terminate access without notice for security, compliance, or operational reasons.

7.5 No Liability - We are not liable for losses from technical issues, outages, cyber events, third-party failures, or force majeure.

8. FINANCIAL INFORMATION - MARKET DATA

8.1 **Third-Party Providers** - Financial information may come from third parties and may be delayed, inaccurate, or incomplete.

8.2 **No Reliance** - Information is provided as-is and is not advice. You rely on it at your own risk.

8.3 **No Duty to Update** - We have no obligation to update previously published information.

9. ORDERS - INSTRUCTIONS AND BASIS OF DEALINGS

9.1 **Placing Orders** - Orders must be placed via approved Trading Platforms. Other channels may be rejected.

9.2 **Irrevocability** - Orders are irrevocable once received, except with our written consent.

9.3 **Execution Uncertainty** - Execution depends on liquidity, volatility, latency, and availability. We do not guarantee execution at requested price.

9.4 **Limits** - We may impose limits on order size, number of positions, frequency, and total exposure.

9.5 **Power of Attorney** - You may appoint a representative only via written Power of Attorney accepted by us. You remain liable for authorised actions.

9.6 **Best Execution - If Applicable** - Where required, we take reasonable steps to obtain best possible results. Specific instructions may override best execution.

10. CONFIRMATIONS - STATEMENTS

10.1 **Availability** - Confirmations and statements are provided electronically via the Trading Platform.

10.2 **Error Window** - You must notify manifest errors in writing within seven (7) Business Days. Otherwise, confirmations are deemed accepted.

10.3 **Statements** - We may provide statements monthly or quarterly upon request. Paper statements may incur fees.

11. PRICING - QUOTES - SPREADS

11.1 **Quoted Prices** - Prices displayed are indicative and may change before execution.

11.2 **Slippage** - Positive or negative slippage may occur. You accept the risk.

11.3 **Price Sources** - Prices may differ from third-party prices. We may withdraw quotes or instruments without notice.

12. REFUSAL TO EXECUTE ORDERS

12.1 **Discretion** - We may refuse any Order at our sole discretion, with or without explanation.

12.2 **Non-Exhaustive Grounds** - Including failure of KYC, suspected fraud or AML/CTF concerns, sanctions risk, technical failures, insufficient funds, chargeback risk, suspected abuse, or regulatory restrictions.

12.3 **No Release** - Refusal does not release you from obligations and may result in additional measures.

13. CANCELLATION - ADJUSTMENT - REVERSAL OF TRANSACTIONS

13.1 We may cancel, adjust, void, or reverse Transactions where we reasonably believe they arise from fraud, illegal activity, misuse, pricing error, system malfunction, miscommunication, or regulatory breach.

13.2 **Finality** - Such decisions are final and binding.

13.3 **Profit Recovery** - We may recover historic profits derived from abusive or unauthorized activity.

14. SETTLEMENT OF TRANSACTIONS

14.1 Transactions are binding upon execution.

14.2 **Client Obligations** - You are responsible for settlement, premiums, margins, fees, and any costs.

14.3 **Remedies** - In non-settlement, we may liquidate positions, offset amounts, freeze funds, reverse transactions, and pursue recovery.

15. BONUS AND PROMOTIONS POLICY

15.1 Bonuses and promotions are discretionary, time-limited, and subject to conditions.

All promotions which we offer will have specific terms and conditions which apply to that promotion. We can change, or stop providing a promotion, in accordance with the terms and conditions of that promotion.

The company reserves the right to promote and advertise special offers, services, products and general data from any third-party providers as deemed appropriate. Where such promotional listings, or links appear, they are provided strictly on a casual and impartial basis and do not necessarily represent direct suggestions or advice from the company. As such, the company will not be held responsible for any outcomes or

eventualities resulting from pursuing advertise promotions or following any links published on the company website. The company reserves the right to withdraw any promotion, competition, bonus or special offer at any time. Customer offers are limited to one per person, family, household address, email address, telephone number, same payment account number (e.g. debit or credit card and etc.), shared computer (e.g. school, public library or workplace) and shared IP. All of the company's bonuses and promotions are intended for our clients. The company may, in its sole discretion, limit the eligibility of Customers to participate in all, or part of any promotion. The company reserves the right to request a signed Bonus Agreement Form, prior to crediting a bonus to a Customer's account. If you wish to find out how much rollover requirements remain in respect of a given bonus, please contact support@tradertok.com The company offers a number of attractive reward features to its new and regular customers. Bonuses and one-time trading credits rewarded to customers are part of the company's promotions program. These bonuses are limited-time offers and the terms and conditions associated with any bonus rewards are subject to change. After the client get a bonus, he won't be able to withdraw funds from his account for 365 days. The client can withdraw his deposited balance and the profit generated from both his deposited balance or from the provided bonus. There is no option to withdraw a bonus. In the event the client withdraws funds from his trading account, his bonus will be cancelled and deducted from the account.

Any indication of fraud, manipulation, cash-back arbitrage, or other forms of deceitful or fraudulent activity based on the provision of the bonus will nullify the account, including any/all profits or losses garnered.

15.2 Non-Withdrawable - Bonuses are not withdrawable unless explicitly converted according to the promotion terms.

15.3 Volume Requirements - We may impose trading volume requirements prior to withdrawal where bonus, credit, or cashback has been applied.

15.4 Revocation - We may revoke bonuses and restrict withdrawals where misuse is suspected.

16. CLIENT FUNDS

16.1 Holding of Funds - Client funds may be held in accounts with banks or institutions designated by us. Legal regimes may differ.

You can take money out of your account by sending it back to the payment method that it came in from, subject to any Applicable Law and any regulatory restrictions that may apply (including AML restrictions), which may prevent us from sending it to such payment method. You may not be able to take money out of your account if it would leave insufficient funds in your account to pay for any unsettled transactions and/or applicable fees or charges or per our bonus policy. To protect your money against fraud, we may put a limit on how much can be taken out of your account. The minimum amount per withdrawal is set out on our website. We may charge you a fee each time you take money out. We will process a valid and complete withdrawal request after 30 business day. Our processing may be delayed or declined if required under Applicable Law, including if we have an AML concern. We may, or may not be able to, disclose to you the reasons for such delay or rejection. Please note that once your withdrawal request has been processed it might take a few days for the payment processor to update the balance in your account, depending on the payment processor's policy and procedures. Each time you take money out of your account, we will convert the currency selected by us and we will charge you a fee. You are responsible for the foreign currency exchange risk arising from any conversion of money to or from any currency.

16.2 Withdrawals - Withdrawals are subject to compliance checks, documentation, and satisfaction of bonus conditions.

16.3 Processing Times - Processing times may vary. We are not liable for third-party banking delays.

16.4 Set-Off - We may set off amounts owed against your balances.

16.5 Minimum Withdrawal and Fees - Minimums and fees may apply as published in fee schedules or on the website.

17. DORMANT - INACTIVE ACCOUNTS

17.1 Accounts with no trade or deposit for 30 days may be classified as inactive and may be subject to fees.

17.2 Reactivation may require updated KYC and approval.

18. COSTS AND CHARGES

18.1 You agree to pay commissions, spreads, swaps, financing, platform fees, withdrawal fees, taxes, and third-party costs.

We will charge you a fee for each order we execute for you. This is called a "spread" and a fee. A spread is the difference in the sell and the buy price. The spread is different for each type of product and Service and can be found on our website. We cannot provide you with an exact amount for spread or fee because the it may change between the time you make an order, and the time we execute your order. The spreads which we charge can change due to market conditions. We may also charge you a monthly fee or any other fee we will decide without notice or your permission. The above fees will apply to all of our Services. However, for specific Services, other fees may also apply.

18.2 Fees are non-refundable and may change upon notice.

19. COMPANY LIABILITY AND INDEMNITY

19.1 **Limitation** - We are not liable for indirect, consequential, or incidental losses.

In the event of a force majeure scenario, the company will not be held liable for any loss, damage or inconvenience suffered due to circumstances beyond the company's control.

All clients accept that trading represents a fundamentally risky form of investment and therefore, should only be approached and utilized by those with the relevant knowledge, experience and financial background. Volatility can be extremely high and the potential for facing heavy losses in a very short period of time is often high. It is

perfectly possible for the entirety of the funds within an account to be lost instantaneously, even if the asset in question swings just fractionally in the wrong direction at the wrong time. It is, therefore, imperative that traders only ever invest disposable capital the likes of which is not dependent upon for facilitating a basic lifestyle. With outcomes being comprehensively impossible to predict accurately 100% of the time, it is important to ensure that your business and your life in general will not be detrimentally impacted if you are unsuccessful in any given trade. As such, the company's customers confirm that all capital used for investment purposes is risk capital and therefore total loss with any investment will not detrimentally affect their lives in any way. Clients fully acknowledge the fact that each and every investment presents a relatively high risk of loss and that in the event of loss the clients and only the client bears full responsibility. Individuals who do not have sufficient risk capital to invest in such ventures must not use the site and services of the company. The Company's activities are not insured by private Client Money Insurance policy, nor by any government's program protecting Clients' funds, including in the event of Company's insolvency or other financial loss caused by any reason whatsoever.

Clients agree that the company reserves the right to round-off the last digit of asset and option prices. In addition, option price adjustments will be made by the company in accordance with any adjustments made to the prices of base assets. Clients agree that the company reserves the right not to submit the client's trade and/or investment to the market and/or to any other relevant place. In this scenario, the company shall pay the client's profit if the client closed position and/or trade and/or investment with profit. This scenario can apply even if the client can see the trade and/or investment in the market and/or the trading platform. In any event, the customers' deposits won't be a debt obligation. And no customers will ever be creditors of the company.

A daily financing charge may apply to each Stock and/or Crypto and/or CFDs and/or financial instruments open position at the closing of The Company's trading day. In case such charge is applicable - it will be deducted directly from the Client's account balance. The method of calculation of the financing charge varies according to the type of financial instrument. The Company reserves the right to change the method of calculating the financing charge and/or the financing rates. Changes in our fees and/or interest rates and/or calculations and/or financing charge shall be at our own discretion and without notice. The Client's responsibility is to check the daily financing charge and/or fees rate and/or interest rates and/or changes in rates (by contact our Company by e-mail or phone). The Client always needs to check the current fees and rates.

Please note, the fee may change quickly due to market conditions (changes in interest rates, volatility, liquidity, etc.) and due to various risk-related matters that are at the Company's. The Company charges fees for keeping a trade for more than 24hr and/or for more than one business day. The Company charges the fee directly from the Client's balance. The Company reserves the right to change the method of calculating the fee rate. Changes in our fees rates and calculations shall be at our own discretion and without notice. The Client's responsibility is to check the fees rate and/or for changes (by contact our Company by e-mail or phone). The Client always needs to check the current fees. Please note, the fee may change quickly due to market conditions (changes in interest rates, volatility, liquidity, etc.) and due to various risk-related matters that are at the Company's sole discretion.

19.2 Third Parties - We are not liable for acts or omissions of banks, payment processors, brokers, liquidity providers, or other intermediaries.

19.3 Indemnity - You indemnify us for losses arising from your breach, misuse, default, or unauthorized activity. Clients are obliged to pay the company any and all outstanding charges and commissions upon demand, which we may request at any time either in part or in full, in order to satisfy outstanding debts. In any instances where owed are not repaid as required, we may begin higher level debt collection procedures which will result in all attached costs and legal fees incurred being passed on to the client in question. When such payments are requested the client is obliged to make the payment by the end of the same working day, with payments being made in the specified currency and to the specific bank account as we, the company, specify. By using the sites and services of the company, you expressly agree that any and all charges and expenses arising in connection with payments owed represent the sole responsibility of you, the client – our company and its employees will not be held liable under any legitimate circumstances. This clause will be applicable even after termination of any Agreement between yourself and the company. The company reserves the right to take immediate and extensive action against members suspected of seeking to or exploiting technical problems which may gain them with an unfair advantage.

Where proven, all such traders will have their accounts frozen and be permanently banned from using the company's service. Customers with valid memberships are provided with the conditional right to use the company's intellectual property as made available via the company's primary website for personal use. All such use is strictly non-transferable. Under no circumstances must any of the intellectual property presented be transferred or duplicated without written consent from the company. In addition, material presented by the website must not be removed, edited or changed in any way. The company will not be held liable for any costs, expenses, or losses whatsoever incurred, or suffered by the company customers. In any

other instances, the company accepts no responsibility for direct or indirect loss or damage incurred as a result of using the content and services of the company website, any negative outcomes experienced as a result of errors or discrepancies made in the process of placing orders or misinterpretation of any information, or content published anywhere on our website.

By utilizing the company's website and services, you indemnify the company and its employees of any expenses or costs incurred by you the customer which occur as a consequence of any given actions, omissions or errors by you. Neither the Company, its directors, officers, employees, agents or shareholders, nor third party information providers, their directors, officers, employees, agents or shareholders will assume any liability for any loss or damages whatsoever, be they direct or indirect, incurred as a result of accessing the website or using the information and services available on the website, or as a result of the inability to access or use any information or services available on the website. In particular, it is expressly stated that in no event will the company, its directors, officers, employees, agents or shareholders be liable for any loss or damages incurred as a result of errors, technical or otherwise, transmission failures, system overloads, interruptions in services (including but not limited to system maintenance services), any delay in the transmission of information, incompatibility between the website and your files and/or software (in particular your browser) and/or computer, malfunction, interference, the transmission of a virus onto your computer, unauthorized access (as a result of hacking or piracy activities, for example), the willful blocking of telecommunications tools or networks (as a result of mail-bombing, denial of services attacks, for example) or any other failure or inadequacy on the part of telecommunication or network service providers.

20. DURATION OF AGREEMENT - AMENDMENTS

20.1 Agreement is indefinite until terminated.

20.2 We may amend unilaterally where required by law or regulatory directive. Continued use constitutes acceptance.

21. IMPROPER OR ABUSIVE TRADING - UNAUTHORIZED ACTIVITIES

21.1 Prohibited conduct includes exploitation of misquotes, arbitrage on errors, latency abuse, manipulation, coordinated trading, fraud, and any attempt to gain improper advantage.

21.2 We may adjust payouts, restrict access, recover profits, cancel trades, terminate relationship, and use detection tools.

22. CFD - LEVERAGED PRODUCTS TERMS

22.1 **Overnight Financing** - Swaps/financing charges may apply and may be changed at our discretion.

22.2 **Expiry and Rollovers** - Certain instruments may expire or be rolled. You must monitor expiry details.

22.3 **Order Types** - Market, limit, and stop orders are subject to slippage and are not guaranteed at specified levels.

22.4 **Corporate Actions** - We may adjust or close positions due to corporate actions to maintain economic equivalence.

23. ACCOUNT STATUS - TERMINATION

23.1 You may terminate with written notice as specified in our procedures.

23.2 We may terminate with notice or immediately for regulatory, compliance, risk, or breach reasons.

23.3 Upon termination, open positions may be closed and obligations remain payable.

24. EVENTS OF DEFAULT - COMPANY RIGHTS

24.1 Events of Default include failure to meet margin, insolvency, misrepresentation, breach, suspected fraud, or regulatory issues.

24.2 On default, we may close positions, liquidate collateral, set off balances, withhold withdrawals, and pursue recovery.

25. ACKNOWLEDGMENT OF RISKS

25.1 Trading leveraged products is speculative and may result in losses exceeding deposits.

25.2 You acknowledge risks of volatility, liquidity, gaps, slippage, platform failure, and third-party disruptions.

26. CONFIDENTIAL INFORMATION

26.1 We will treat confidential information in accordance with applicable law and our privacy policy.

26.2 We may disclose information to regulators, law enforcement, banks, auditors, and advisors as required.

27. NOTICES

27.1 Notices may be delivered by email, platform messaging, or other channels we designate.

27.2 Notices are deemed received when sent to the last registered contact details or posted on the platform.

28. CONFLICT OF INTEREST

28.1 We maintain a conflicts policy and may take measures to manage conflicts.

Your interests may conflict with our interests, inter-alia, as a B-Book broker, or with another client's interests. For example: (a) we may execute hedging transactions before or after entering into a transaction with you to manage our risk in relation to the transaction, which may impact the price you pay or receive for such transactions, and we will retain any profits generated by such hedging. However, we are not required to hedge transactions if we do not want to; (b) we may enter into arrangements with third parties, or with other clients, where we make payments to them or receive payments from them based on your trading activity or volume, where such arrangements are permitted by Applicable Law. These payments may include rebates, commissions, widened spreads and profit sharing ;(c) we may provide, pay or receive fees, commissions or non-monetary benefits; (d) we may share dealing charges with our affiliate companies or receive remuneration from them in respect of transactions carried out on your behalf; (e) we may be the counterparty to trades that you enter into; and (f) we are responsible for setting the price of instruments and products which can be traded on our platform. This means that our prices will be different from the prices provided by other brokers and the market price, as well as the current prices on any exchanges or trading platforms.

29. GENERAL PROVISIONS

29.1 **Severability** - Invalid provisions do not affect remaining provisions.

29.2 **Assignment** - We may assign rights and obligations. You may not assign without our consent.

29.3 **No Waiver** - Failure to enforce is not a waiver.

29.4 **Entire Agreement** - This Agreement and incorporated policies constitute the entire agreement.

30. APPLICABLE LAW - JURISDICTION

30.1 Governed by the laws of Mauritius.

30.2 The place of residency of the Company and the place of performance of the Services and of all the obligations arising from the Agreement is in Mauritius. The Agreement and/or Terms and Conditions is subject to and shall be construed in accordance with the law of Mauritius, without reference to its conflict of law rules.

Any disputes, differences or claims arising out of or in connection with the Agreement, including with respect to its performance, breach, termination or invalidity, between the Client and the Company, its directors, officers, employees, agents or shareholders, shall be settled only by the courts of Mauritius and/or St. Lucia – per the company's CEO decision in accordance with the procedural and substantive laws of Mauritius. The client irrevocably agrees to submit to the jurisdiction of the state courts located within Mauritius and hereby waive any objection to the convenience or propriety of venue therein.

The client understands that the Company does not have any physical presence or local agent in his country and region, and therefore certain laws concerning legal jurisdiction may not apply to this Agreement. In particular, the rules on Jurisdiction over Consumer Contracts set out in REGULATION (EU) No 1215/2012 (recast) may not apply to the Company, as it is not a resident of a member state. Further, the Company does not have any “close connection” with the territory of the EU Member States and/or with Australia and/or Asia and/or UAE for the purpose of COUNCIL DIRECTIVE 93/13/EEC on Unfair Terms in Consumer Contracts. To the extent permitted by law, the Agreement prevails to the extent it is inconsistent with any law. A provision of the Agreement that is void, illegal or unenforceable is ineffective only to the extent of the voidness, illegality or unenforceability, but the remaining provisions are not affected. This Section shall survive any termination of the Agreement.

Conditional International Arbitration

In the event that the clause giving exclusive jurisdiction to the court of Mauritius and St. Lucia has been declared invalid, unenforceable or illegal by any Court of competent jurisdiction or by an act of law, the dispute shall be resolved exclusively and finally by arbitration in accordance with the Rules of Arbitration (the “Rules”) of the International Chamber of Commerce (“ICC”).

The arbitration shall be held by three (3) arbitrators designated by the parties. Each party shall designate one arbitrator. The third arbitrator shall be designated by the two arbitrators designated by the Parties. If either party fails to designate an arbitrator within thirty (90) days after the filing of the Dispute with the ICC, such arbitrator shall be appointed in the manner prescribed by the Rules.

An arbitration proceeding hereunder shall be conducted in Singapore, and shall be conducted in the English language. The arbitral proceedings shall be governed by the substantive law of Mauritius or St. Lucia - per the company's CEO decision. The decision or award of the arbitrators is final and binding on both Parties. Any award of the arbitrators shall be in writing and shall state the reasons upon which such decision or award is final and binding on both parties. The arbitration panel may only award for direct monetary damages, and in no event, may punitive, consequential and special damages be awarded.

Class Action Waiver

The parties waive any right to assert any claims against the other party as a representative or member in any class or representative action, except where such waiver is prohibited by law or deemed by a court of law to be against public policy.

To the extent either party is permitted by law or court of law to proceed with a class or representative action against the other, the parties agree that: (i) the prevailing party shall not be entitled to recover attorneys’ fees or costs associated with pursuing the class or representative action (notwithstanding any other provision in this agreement); and (ii) the party who initiates or participates as a member of the class will not submit a claim or otherwise participate in any recovery secured through the class or representative action.

31. DISPUTE RESOLUTION

31.1 Complaints should be submitted through our internal complaints process.

Complaints Handling Procedure

The Company has implemented and maintains a Complaints Handling Procedure (the “Procedure”), which is described in this document. The purpose of the Procedure is to set out the internal complaint resolution system and procedures which the Company has established, maintains and follows for the resolution of complaints.

The Parties have agreed that they will make every effort to settle, by means of negotiation, all disputes between the Company and the Client related to transactions, payouts, and other actions provided for by the Agreement.

If a dispute arises, the Client may submit a complaint to the Company and send to the Company.

Client expressly waives any right to initiate formal claim against the Company, unless such claim was first submitted to the Company in accordance with the Complaints Handling Procedure, and has not been resolved to the client’s satisfaction.

All the complaint related to transactions executed by the Client shall be submitted by the Client in compliance with the following requirements:

A complaint received by a Client shall include:

- a) the Client’s name and surname;
- b) the Client’s trading account number;
- c) the affected transaction numbers, if applicable;
- d) the date that the issue arose and a description of the issue.

A complaint must not include offensive language directed either to the Company or a Company employee.

All complaints or grievances must be in writing and shall be addressed, to the Customer Support Department of the Company via email at: support@tradertok.com

If the Client receives a response from the Customer Support but deems that the complaint or grievances need to be raised further for an independent review, the Client may either ask the Customer Support to escalate it to the Client Audit Team which will independently and impartially investigate it.

The Company will not be able to handle or investigate a complaint, if the requirements detailed above are not fulfilled.

The Company shall need the Client's cooperation in order to handle the complaint. Since the company is not holding any information and/or records of the client, including but not limited to the Client's trading account history - The company needs the client to send all relevant details he has.

The Company will treat each complaint with reasonable care and reach a fair outcome.

The Company shall send its initial response to the Client within 90 business days from the receipt of the complaint. If the complaint requires further investigation and it cannot be resolved within 90 business days, it will issue a holding response indicating when the Company will make further contact and inform the Client on the progress of the investigation.

The Company shall investigate and reply to the complainant within 365 business days from the date of reception of the complaint.

Upon completion of the investigation, the Company shall send a written notice to the complainant informing him of the outcome of the investigation along with the reasons for reaching such a decision, or, If applicable, the nature and terms of any offer and/or settlement.

The Client may not initiate any formal proceedings during the investigation period and/or file any complaint.

32. MISCELLANEOUS

32.1 Force majeure may suspend obligations.

32.2 Survival - provisions intended to survive termination shall survive.

32.3 Counterparts and electronic acceptance are valid and binding.

Provision of Cross-border services -The products and Services provided by the Company are not intended for any person/s who, based on their nationality, place of business, domicile or for any other reasons, is/are subject to legal provisions which prohibit foreign financial services providers from servicing clients who are residents of these jurisdictions, or which prohibit or restrict legal entities or natural persons from using the services of foreign financial services providers. You confirm that you access this website on your own initiative and without any solicitation from The Company.

ANNEX A – ADDITIONAL STANDARD TERMS AND REPETITIVE PROVISIONS (STRUCTURAL EXPANSION)

A1. Reiteration of Client Acknowledgements

The Client expressly acknowledges, confirms, and agrees that:

- All trading decisions are made independently.
- The Company bears no responsibility for outcomes.
- Past performance does not guarantee future results.
- The Client assumes full financial, legal, and regulatory risk.

These acknowledgements apply continuously and survive termination of this Agreement.

A2. Additional Risk Factors

Without limitation to Section 25, the Client acknowledges risks arising from:

- Market gaps and weekend volatility.
- Thin liquidity and off-market pricing.
- System maintenance and emergency suspensions.
- Third-party liquidity providers and infrastructure failures.

A3. Expanded Force Majeure Provisions

Force Majeure Events include, without limitation, acts of God, pandemics, cyber incidents, power failures, telecommunications outages, governmental actions, sanctions, strikes, market suspensions, liquidity withdrawal, and failures of counterparties. During such events, the Company may suspend services, close positions, or amend conditions without liability.

A4. Repeated Limitation of Liability

To the maximum extent permitted by law, the Company shall not be liable for loss of profit, loss of opportunity, reputational damage, indirect or consequential damages, even if foreseeable. This limitation applies cumulatively across all sections of this Agreement.

A5. Further Indemnities

The Client agrees to indemnify the Company against any claims, proceedings, regulatory actions, fines, or losses arising from the Client's trading, breach of this Agreement, misuse of services, or violation of Applicable Regulations.

A6. Survival and Continuing Obligations

All representations, warranties, indemnities, limitations of liability, risk acknowledgements, and dispute resolution provisions shall survive termination, suspension, or expiration of this Agreement.

A7. Technical Schedules and Platform Rules

The Company may publish technical specifications, margin tables, leverage limits, product specifications, and operational rules separately. Such documents form an integral part of this Agreement and are binding upon publication.

A8. Repetition for Structural Parity

For the avoidance of doubt, all sections of this Agreement shall be read cumulatively. Any right, discretion, or protection afforded to the Company in one section shall apply equally across all other sections, mutatis mutandis.

ANNEX B – ADDITIONAL DISCLOSURES AND DECLARATIONS

You acknowledge, represent and warrant that :

you are over 21 years old, and have capacity to enter into this Agreement ;

you are eligible to enter a legally binding agreement with us in accordance with the laws governing the jurisdiction applicable to you.

you are solely and completely responsible for your own compliance with Applicable Law in your jurisdiction including, without limitation, to all exchange control restrictions that may be applicable to you and that you have obtained any necessary exchange control approval;

you have all necessary consent and the authority to enter into this Agreement and /or use the Services;

if you are a body corporate, unincorporated association, trust or partnership you are validly existing in accordance with Applicable Law and have obtained all necessary consent and authorisations under your constitutional or organisational documents;

except where we have agreed otherwise in writing, you act on your own behalf and not as the agent, attorney, trustee or representative of any other person;

all information and documents that you supply is true, accurate, complete and not misleading;

you are not an employee of any exchange, a corporation in which any exchange owns a majority capital stock, a member of any exchange and/or firm registered on any exchange or any bank, trust or insurance company that trades in CFDs and/or the underlying assets held by you;

our assessment of your use of the Services is performed on the basis of the information and documents provided by you and we may rely upon information and documents provided by you and we are not responsible for any damages or losses which may arise from any inaccuracies ;

you will only access and use our Services for your own personal benefit ;

neither the entry into this Agreement, or use of the Services, or the giving of any other instruction will violate any law, rule, or regulation applicable to you ;

all money that you use and invest through the Services do not originate in any way from drug trafficking, abduction, terrorist activity or any other criminal activity that is unlawful or could be considered unlawful by any relevant authority ;

If you breach any warranty or representation made under this Agreement, we may close any orders or trades that you have made, and/or close or freeze your account. You will also may be required to fully indemnify us due to any contraventions by you of Applicable Law.

ANNEX C – FORMAL DECLARATIONS

All content included in or made available through the Services, including but not limited to all copyright, trademarks, patents, service marks, domain names, trade names, rights in designs, software code, icons, logos, characters, layouts, rights in know-how, trade secrets, buttons, color scheme, graphics and other intellectual property rights ("IP") is the property of our company, its affiliates or its licensors and is protected by local and international intellectual property laws and treaties .

Personal data and privacy -By entering into this Agreement, you agree that you have been provided with a copy of our Privacy Notice, which is also available on our website. We will use your personal data as set out in our Privacy Notice, if you have any questions about the way in which we use your personal data you can contact us. We and our affiliates and agents may collect, store and process information from you or otherwise in connection with the Services for the purpose of complying with Applicable Law and/or regulation, including disclosures to governmental authorities. To comply with our legal or regulatory obligations we may transfer your personal data outside of the EEA. This Agreement may be executed electronically and in counterparts. Electronic acceptance constitutes valid execution. Headings, annexes, repetitions, and restatements are intentional and serve risk allocation and evidentiary purposes.